

In the
Court of Appeals
Sixth Appellate District of Texas at Texarkana

No. 06-26-00035-CV

WILLIAM DAN MOSS AND BRENDA MOSS, Appellants

V.

MARK LAWRENCE, AGENT FOR THE GARNER HEIR GROUP, Appellee

On Appeal from the County Court at Law
Hopkins County, Texas
Trial Court No. CV25-09162

Before Stevens, C.J., van Cleef and Rambin, JJ.
Memorandum Opinion by Chief Justice Stevens

MEMORANDUM OPINION

Mark Lawrence, as agent for the Garner Heir Group, sued William Dan Moss and Brenda Moss for forcible entry and detainer of seventy acres in Hopkins County. The Hopkins County Justice Court, Precinct Two (Justice Court), awarded possession to Lawrence. The Mosses then appealed to the County Court at Law of Hopkins County, Texas (trial court), wherein a jury also awarded possession to Lawrence.

On appeal here, the Mosses argue that (1) the Justice Court and the trial court lacked subject-matter jurisdiction because the right to possession could not be decided without adjudicating title and (2) the judgment is void because the Garner Heir Group is not a legal entity with standing to sue. For the reasons below, we affirm the trial court's judgment.

I. Background

The Mosses lived on seventy acres in Sulphur Springs and maintain that the property has been in the Moss family for decades. William's mother died and specifically excluded him as an heir to her estate, which included her share of the property. William contested his mother's will in the County Court at Law Number One of Hunt County, Texas (probate court), and the probate court found against him. Then, William sued Lawrence, as agent for the Garner Heir Group, for trespass to try title and to quiet title in the 62nd Judicial District Court of Hopkins County, Texas (District Court). The District Court signed a final summary judgment ordering that William take nothing, and William did not appeal.

Lawrence then served the Mosses with a notice to vacate and filed a sworn eviction petition in the Justice Court. Lawrence alleged in the petition that the Mosses "were [n]ever

given permission to occupy the land . . . by the [Garner] Heir Group." The Justice Court awarded possession to Lawrence.

Following their loss in the Justice Court, the Mosses appealed to the trial court. Appearing pro se, the Mosses elected for a jury trial. A few days before the jury trial, the Mosses filed a "Petition for Bill of Review," which was a single-page document that contained no claims or legal arguments.

On March 9, 2026, the case proceeded to trial. After each side presented their case to the jury, the jury found that the Garner Heir Group had superior right of possession. The trial court signed a judgment of possession to Lawrence, as agent for the Garner Heir Group, and subsequently signed an amended judgment stating the same.

Following the trial, the trial court denied the Mosses' pre-trial petition for bill of review.

The Mosses now appeal.

II. The Trial Court Did Not Lack Jurisdiction

In their first issue, the Mosses argue that the trial court lacked jurisdiction because no landlord-tenant relationship existed with Lawrence and the trial court was required to determine ownership before awarding possession.

A. Standard of Review and Applicable Law

Whether a court has subject matter jurisdiction is a question of law. *Sw. Elec. Power Co. v. Lynch*, 595 S.W.3d 678, 682 (Tex. 2020) (citing *Tex. Dep't of Parks & Wildlife v. Miranda*, 133 S.W.3d 217, 226 (Tex. 2004)). This "question of law [is] review[ed] de novo." *Harrell v.*

Citizens Bank & Tr. Co. of Vivian, 296 S.W.3d 321, 324 (Tex. App.—Texarkana 2009, pet. dism'd w.o.j.).

"Chapter 24 of the Texas Property Code grants justice courts 'jurisdiction in eviction suits,' including suits for forcible entry and detainer . . . and forcible detainer." *Westwood Motorcars, LLC v. Virtuolotry, LLC*, 689 S.W.3d 879, 883 (Tex. 2024) (quoting TEX. PROP. CODE ANN. § 24.004(a)). "[E]viction suits are limited in scope and effect, with the 'sole focus' being 'the right to immediate possession of real property.'" *Id.* (quoting *Shields Ltd. P'ship v. Bradberry*, 526 S.W.3d 471, 478 (Tex. 2017)).

A justice court has original jurisdiction of forcible entry and detainer cases, but it has no jurisdiction of "a suit for trial of title to land." TEX. GOV'T CODE ANN. § 27.031(a)(2), (b)(4) (Supp.). The rules regarding eviction provide that "[t]he court must adjudicate the right to actual possession and not title." TEX. R. CIV. P. 510.6(f). "Although the justice court's judgment may be appealed to county court, 'the county court has no greater jurisdiction than the justice court had.'" *Westwood*, 689 S.W.3d at 883 (quoting *Tellez v. Rodriguez*, 612 S.W.3d 707, 709 (Tex. App.—Houston [14th Dist.] 2020, no pet.)).

"Where determination of the right to immediate possession requires adjudication or resolution of a title dispute, the justice court has no jurisdiction to enter judgment in the forcible (entry and) detainer action." *Geldard v. Watson*, 214 S.W.3d 202, 206 (Tex. App.—Texarkana 2007, no pet.). "[T]he right to immediate possession can be determined separately from the right to title in most cases." *Harrell*, 296 S.W.3d at 326. A plaintiff in an eviction suit "is not required to prove title, but is only required to show sufficient evidence of ownership to

demonstrate a superior right to immediate possession." *Id.* at 327. "[I]t is only when the justice or county court *must* determine title issues that it is without jurisdiction to adjudicate a forcible detainer case." *Rice v. Pinney*, 51 S.W.3d 705, 713 (Tex. App.—Dallas 2001, no pet.).

B. Analysis

The Mosses first argue that an eviction suit cannot proceed without a landlord-tenant relationship. Chapter 24 creates two claims for eviction: (1) forcible entry and detainer and (2) forcible detainer. "Generally, forcible entry and detainer occurs when a person enters the property of another 'without legal authority or by force and refuses to surrender possession on demand.'" *Westwood*, 689 S.W.3d at 883 n.2 (quoting TEX. PROP. CODE ANN. § 24.001(a)). A forcible entry includes "an entry without the consent of the person in actual possession of the property." TEX. PROP. CODE ANN. § 24.001(b)(1). "Forcible detainer occurs when a person whose initial entry was lawful 'refuses to surrender possession . . . on demand.'" *Id.* (quoting TEX. PROP. CODE ANN. § 24.002(a)). Forcible entry and detainer requires no tenancy, and forcible detainer requires tenancy. *See* TEX. PROP. CODE ANN. §§ 24.001, 24.002.

Here, the petition does not specify which cause of action. However, in the petition for eviction, Lawrence alleged that "William Dan 'Bill' Moss nor his Wife Brenda Moss were ever given [p]ermission to occupy the land at 600 FM 1536 by the [Garner] Heir Group." Thus, the substance makes it clear that Lawrence sought forcible entry and detainer. *See State Bar of Tex. v. Heard*, 603 S.W.2d 829, 833 (Tex. 1980) (orig. proceeding) ("We look to the substance of a plea for relief to determine the nature of the pleading, not merely at the form of title given to it."). Therefore, Lawrence was not required to prove tenancy.

Moreover, nothing suggests that the trial court needed to resolve title before resolving possession. The Mosses cite to *Rice* for the proposition that a justice or county court does not have jurisdiction if there is a genuine dispute over title. *See Rice*, 51 S.W.3d at 713. That is the exact argument made in *Rice*, and that court stated that a genuine issue over title is not required. The court in *Rice* also stated that "a justice court or county court at law is not deprived of jurisdiction merely by the existence of a title dispute, but is deprived of jurisdiction only if 'the right to immediate possession *necessarily requires the resolution of a title dispute*.'" *Id.* (quoting *Haith v. Drake*, 596 S.W.2d 194, 196 (Tex. App.—Houston [1st Dist.] 1980, writ ref'd n.r.e.)); *see Jelinis, LLC v. Hiran*, 557 S.W.3d 159, 167 (Tex. App.—Houston [14th Dist.] 2018, pet. denied) ("[A] justice court is not deprived of jurisdiction merely by the existence of a title dispute; it is deprived of jurisdiction only if resolution of a title dispute is a prerequisite to determination of the right to immediate possession.").

The condition precedent in *Rice* was already met here. The trial court did not have to adjudicate title to decide possession because that issue was already determined in the trespass to try title and to quiet title action in the District Court, where the Mosses received a final take nothing judgment. *See Hejl v. Wirth*, 343 S.W.2d 226, 226 (Tex. 1961) ("If the plaintiff under the circumstances fails to establish his title, the effect of a judgment of take nothing against him is to vest title in the defendant.").

The Mosses also argue that title to the property was still genuinely challenged because they have a "pending Petition for Bill of Review directed" at the issues in this case, which include "the probate court's summary judgment rejecting [William's] will contest, and the 2024

quiet-title judgment in Cause [Number] CV045494." The Mosses acknowledge in their brief that the previous trespass to try title and quiet-title judgment usually determines the issue. However, the Mosses argue that the previous final judgment does not foreclose the issue here because their petition for bill of review filed before trial constitutes a live dispute.

Here, the record before us shows that a "Petition for Bill of Review" was filed, yet there is no substance to the petition. The trial court denied that petition after the jury trial. Even so, "[b]ecause it is a direct attack, a bill of review must be brought in the court that rendered the original judgment, and only that court has jurisdiction over the bill." *Frost Nat'l Bank v. Fernandez*, 315 S.W.3d 494, 504 (Tex. 2010). The Mosses did not file a bill of review in the appropriate court, and thus, there can be no live controversy in title to the property at issue under either the probate court's summary judgment or the previous trespass to try title and quiet title action in the District Court.

We, therefore, overrule the Mosses' first issue.[1]

III. The Mosses Did Not Preserve Their Capacity Complaint

In their second issue, the Mosses argue that the "Garner Heir Group" is not a legal entity that can sue, hold a judgment, or authorize an agent. As a result, as the Mosses argue, no plaintiff had standing and the judgment is void.

The substance of this challenge is to capacity—and not to standing. Standing and capacity are separate legal concepts, which both affect jurisdiction differently. "A plaintiff must

[1]The Mosses also argue that "*nowhere in the Clerk's Record does* [*Lawrence*] *offer a deed, a lease, or any certified conveyance instrument as evidence that it is, in fact, the owner of the Property*." We need not address this argument because it is inadequately briefed since the Mosses did not cite any authority to substantiate such a requirement. *See* TEX. R. APP. P. 38.1(i).

have both standing and capacity to bring a lawsuit." *Austin Nursing Ctr., Inc. v. Lovato*, 171 S.W.3d 845, 848 (Tex. 2005). "A plaintiff has *standing* when it is personally aggrieved, regardless of whether it is acting with legal authority; a party has *capacity* when it has the legal authority to act, regardless of whether it has a justiciable interest in the controversy." *Id.* at 848–49 (quoting *Nootsie, Ltd. v. Williamson Cnty. Appraisal Dist.*, 925 S.W.2d 659, 661 (Tex. 1996)).

"Unlike standing, . . . which may be raised at any time, a challenge to a party's capacity must be raised by a verified pleading in the trial court." *Id.* at 849 (citing TEX. R. CIV. P. 93(1)–(2)). "Because capacity does not implicate a court's subject-matter jurisdiction, it may be waived." *Pike v. Tex. EMC Mgmt., LLC*, 610 S.W.3d 763, 801 (Tex. 2020) (Bland, J., dissenting). Here, the Mosses point to no verified plea, objection, or motion in which they challenged Lawrence's authority to sue on behalf of the Garner heirs, and we have found none. Therefore, the complaint is waived.

As a result, we overrule the Mosses' second issue.[2]

IV. Conclusion

We affirm the trial court's judgment.

Scott E. Stevens
Chief Justice

Date Submitted: October 16, 2026
Date Decided: October 22, 2026

[2]The Mosses also argue that the judgment names "Lawrence alone." Both the judgment and amended judgment state, "Plaintiff, MARK LAWRENCE, Agent for THE GARNER HEIR GROUP."